

KNOWN PATH UCC panel submits report to CM Mohan Yadav, July 13

Takeaways

- **Mohan Yadav cabinet clears draft UCC, bill passed on July 21**
- **Nearly identical to its forebears on polygamy, live-ins, inheritance**
- **MP chooses to keep tribals—21% of state's population—outside UCC**

certain aspects of the code, especially provisions that will alter the Muslim community's recourse to personal law, to be challenged in court. Bhopal North Congress MLA Atif Aqueel's response gave advance notice of this. "The meeting to invite objections and suggestions was a mere formality," he says. "The draft panel did not have members of all communities."

Babasaheb Ambedkar, Aqueel points out, had consulted all communities and incorporated their views in the Constitution. "Why have you invited me to the meeting when you (the committee) have decided to pass the UCC without considering my views?" he asks.

The framework for live-in relationships, too, largely treads the known path. Registration is mandatory, and avoidance brings on penal provisions, though lighter than Uttarakhand's and applicable only within the state's jurisdiction, unlike Gujarat. Once registered, the parents of partners would be informed. Deserted women become eligible for maintenance, and children born through live-ins would enjoy property rights.

REFORMIST IN PART

On property, the bill continues in the reformist vein of the previous two provisions: it is to be distributed equally among all heirs of a deceased person. An interesting addition in the MP UCC: both parents are granted a share in a son's property, along with his wife and children. Earlier, only the mother had a share. The idea is to save the elderly from neglect. A parent's death will see that share transfer to the spouse, not child.

As for the tribals, it's a demographic large enough for the BJP to want to keep on its side. Tribal groups had warned they would brook no interference in their traditions—in response to the line that a UCC is meaningless if it does not abolish all customary laws, including polygamy among tribals. The bill tiptoed around the issue, including for converts. An officer associated with the drafting voiced caution: "There is a lot of variation in customs even among tribals. It would not be prudent at this time to attempt a UCC that includes tribals."

Otherwise, of course, polygamy stands abolished—a central feature widely seen as targeting polygyny in Islamic personal law. That has stayed constant since India's first common civil code, the one drafted in Goa under the colonial Portuguese in 1867. ■

By **Amitabh Srivastava**

IT TOOK OVER A MONTH AFTER HIS ENTRY into the cabinet, even so Nishant Kumar's first real stab at putting up a positive persona on the public stage didn't go quite to plan. The 45-year-old Bihar health minister had walked into Patna Medical College and Hospital (PMCH) for a surprise inspection. It was an author-backed script and the dice rolled in its favour: the principal happened to be absent! The moment seemed ripe to confer on the son of former chief minister Nitish Kumar the air of a proactive disciplinarian. The principal got transfer orders and disciplinary proceedings slapped on him.

But what ought to have looked good in the headlines devolved into a genuinely controversial moment in Nishant's fledgling political career. Dr Narendra Pratap Singh, the allegedly errant principal, came out all guns blazing. He was neither asked to explain his absence nor given an opportunity to present his case, Dr Singh claimed. Moreover, he proclaimed, he had "no faith" in the health minister. Instead of an aura, the episode had delivered an ouch moment. One more in a string of somewhat klutzy episodes this hospital set-piece was supposed to cure.

It's against this backdrop that the Janata Dal (United) seniors started investing in a kind of political repackaging of Nishant. On his slender shoulders rests the onerous job of emerging as the party's next messiah, but it has so far been an underwhelming debut for the JD(U) scion. His early public appearances attracted widespread ridicule on social media. Clips of Nishant's speeches and public interactions travelled rapidly, inviting ridicule for his hesitant delivery, awkward body language and perceived lack of political polish. The challenge of transforming a worthy surname into a political asset, the party realised, was enormous.

Something had to be done—and fast. That's when they rolled out a systematic makeover plan. Instead of presenting Nishant merely as Nitish's son, he had to be projected as a minister immersed in administration. The desired visual messaging: less podium politics, more executive responsibility. PMCH, the first scene of that act, may have gone a bit sideways, but that didn't